



File No.: EXP202402041

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 18, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against SEGURCAIXA ADESLAS, S.A. DE SEGUROS Y REASEGUROS (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that, on June 29, 2023, they requested access to their personal data from SEGURCAIXA ADESLAS, S.A. DE SEGUROS Y REASEGUROS. They indicate that the response is incomplete as it lacks information regarding blocked data related to health policies canceled on May 27, January 27, 2018, and November 27, 2017, and request access to the blocked data. The complainant submits a new request to the respondent expressing their disagreement with the response received and requesting access to the blocked data.

On the other hand, they assert that the respondent processes data through CDN systems that are not stored in Europe but are distributed in the USA, through companies that do not comply with EU requirements or the GDPR.

SECOND: On March 15, 2024, this Agency resolves the complaint filed by the complainant regarding their unattended access request. It concludes by rejecting the complaint as follows:

“Once the reasons presented by the respondent, which are in the file, have been analyzed, this Agency considers that the requested right has been addressed.”

THIRD: The complainant, in total disagreement with the resolution, files a motion for reconsideration which is resolved on July 5, 2024, in a favorable manner, leading to the current rights procedure with the following arguments:

It is noted that the personal data that are blocked have not been delivered due to the fact that more than a year has passed since the cancellation date of the following policies: Health Policy ***REFERENCE.1 (cancellation 05/27/2021); Health Policy ***REFERENCE.2 (cancellation 01/27/2018); and Health Policy ***REFERENCE.3 (cancellation 11/27/2017).

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FOURTH: In light of the events, on July 8, 2024, the original complaint is again forwarded to the respondent, along with the motion for reconsideration submitted by the complainant and the resolution of that motion, so that within a period of fifteen working days, they may present any arguments they deem appropriate.

The respondent presents the following arguments:

“...SEGURCAIXA wishes to inform the supervisory authority, to which we respectfully address, that the information linked to policy ***REFERENCE.1 was duly made available to the holder by means of a letter dated June 18, 2021, as evidenced by the following screenshot.”

“...through DOCUMENT NUMBER 1 attached to this letter, the Company has provided the Complainant with all the personal information currently being processed about them, including the previously blocked information linked to policies ***REFERENCE.2 and ***REFERENCE.3, thus fully addressing the exercise of their right of access as established by Article 15 of the GDPR.”

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within a period of fifteen working days, they may formulate any arguments they consider

appropriate, summarizing the following allegations:

“...This allegation highlights concerns regarding the authenticity and integrity of the health information collection process, as well as the need for a broader investigation into Adeslas' data protection practices. It is a reasonable request given the sensitive nature of health data and the apparent irregularities in its handling.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures.”

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including the power to “order the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to

the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such a request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right pertains to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

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We will begin by stating that this claim will only consider whether the requested right, the right of access, has been addressed or not. The other issues raised by the claimant will not be taken into account in this resolution, but this Agency reserves the right to open an investigation if deemed appropriate.

In the case analyzed here, the claimant exercised their right of Access and, after the period established in the aforementioned regulations had elapsed, their request received a response that this Agency deemed adequate, and the claim was dismissed.

Later, the claimant submitted a request for reconsideration which, once analyzed, is upheld and gives rise to the current rights procedure. Now, after reviewing all the documentation provided by both parties, we find that the reason for the discrepancy is that the respondent has not delivered the personal data that is blocked due to more than one year having passed since the cancellation date of the health policies ***REFERENCE.1 (cancellation 27/05/2021); ***REFERENCE.2 (cancellation 27/01/2018); and ***REFERENCE.3 (cancellation 27/11/2017), as requested by the claimant.

In this case, however, it is noted that during the processing of the claim that gives rise to this

procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the respondent has evidenced the communication sent to the interested party addressing the right with the delivery of the documentation of said policies. This response, therefore, occurs after the established deadline has been exceeded.

Consequently, it is appropriate to uphold the claim that gave rise to this procedure for formal reasons. In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by A.A.A., against SEGURCAIXA ADESLAS, S.A. DE SEGUROS Y REASEGUROS. However, a new certification by the respondent is not warranted, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to SEGURCAIXA ADESLAS, S.A. DE SEGUROS Y REASEGUROS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a request for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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